

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Perri Fagin	Team: Squad #11	CCRB Case #: 201606455	☒ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Wednesday, 07/13/2016 8:00 PM	Location of Incident: Inside the 71st Precinct stationhouse	18 Mo. SOL 1/13/2018	Precinct: 71
Date/Time CV Reported Sat, 07/16/2016 7:00 PM	CV Reported At: Other City agency	How CV Reported: Phone	Date/Time Received at CCRB Tue, 07/26/2016 12:02 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Ericka Best	05534	948665	071 PCT
2. POM Denzil Trim	14723	956307	071 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Ismael Rivera	09052	951149	071 PCT
2. SGT Larry Meyers	05284	939030	071 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POF Ericka Best	Force: Police Officer Ericka Best used physical force against § 87(2)(b)	A . Exonerated
B . POM Denzil Trim	Discourtesy: Police Officer Denzil Trim spoke discourteously to § 87(2)(b)	B . Unsubstantiated

Case Summary

On July 16, 2016, § 87(2)(b) called 311 to file this complaint, which was initially referred to the IAB Command Center and subsequently received at the CCRB on July 26, 2016.

On July 13, 2016, at approximately 8:40 p.m., § 87(2)(b) was lodged in the female holding cell at the 71st Precinct stationhouse, having been arrested for § 87(2)(b) earlier that day. PO Ericka Best of the 71st Precinct allegedly pushed § 87(2)(b) out of her way (**Allegation A**). PO Best later brought § 87(2)(b) water. From the male holding cell, an unknown male prisoner called out, “I’m hungry, I’m thirsty” a few times, to which PO Denzil Trim from the 71st Precinct allegedly responded, “Oh, this dickhead does not want her water, you can have it,” in reference to § 87(2)(b) (**Allegation B**).

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

There is no video footage of this incident.

Mediation, Civil and Criminal Histories

- This complaint was not eligible for mediation (Board Review 12).
- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- As of October 14, 2016, the Notice of Claim inquiry with the New York City Comptroller’s Office is still pending (Board Review 14).

Civilian and Officer CCRB Histories

- This is § 87(2)(b) first CCRB complaint (Board Review 02).
- PO Best has been a member-of-the-service for six years and has four prior CCRB complaints filed against her involving 11 allegations, none of which were substantiated § 87(2)(g)
- PO Trim has been a member-of-the-service for two years and this is his first CCRB complaint.

Findings and Recommendations

Explanation of Subject Officer Identification

§ 87(2)(b) alleged that after arguing with PO Best and while still lodged in the holding cell, a black male officer, who was approximately 6’4” tall, referred to her as a “dickhead.” PO Best identified PO Trim as the black male officer who was present during this incident and PO Trim, whose NYPD officer photo and pedigree information (Board Review 15) indicate is § 87(2)(b) tall, acknowledged his presence near the holding cell area as well. No officer interviewed indicated that any additional black male officers were present at this time. PO Ismael Rivera of the 71st Precinct (Board Review 10), was § 87(2)(b)’s arresting officer and the 71st Precinct roll call (Board Review 03) indicates that PO Yiyong Ren was the cell attendant at the time, but PO Rivera is a Hispanic male and PO Ren is an Asian male. § 87(2)(g)

Allegation A -Force: Police Officer Ericka Best used physical force against § 87(2)(b)

It is undisputed that while § 87(2)(b) was inside the female holding cell, PO Best told § 87(2)(b) to move out of the way of the door, and when § 87(2)(b) did not comply, PO Best made physical contact with her upper arm. § 87(2)(b) alleged that PO Best pushed her shoulder with an open hand, "just like when you're trying to push a person to the side," which caused § 87(2)(b) to "take a little step back" (Board Review 04). During her phone statement, § 87(2)(b) stated that PO Best "moved § 87(2)(b) back" by extending her arm in front of § 87(2)(b) so that § 87(2)(b) could enter the cell (Board Review 07).

PO Best testified that she was escorting a prisoner, § 87(2)(b) to the female holding cell and needed to remove § 87(2)(b)'s shoelaces inside the cell (Board Review 05). PO Best said that § 87(2)(b) was standing in the way of the door and she asked § 87(2)(b) to move multiple times, but § 87(2)(b) would not comply. PO Best testified that she reached her hand through the doorway, placed it, open-palmed, on § 87(2)(b) shoulder, and "guided her," causing § 87(2)(b) to take a step to the side.

PO Trim testified that PO Best put her hand on § 87(2)(b) upper arm and used "minimum force" to "guide" § 87(2)(b) to the side, causing § 87(2)(b) to take a step to the side (Board Review 06).

§ 87(2)(g)

Physical force may be used when it is reasonable to ensure the safety of a member of the service or a third person. In all circumstances, any application or use of force must be reasonable under the circumstances. NYPD Patrol Guide, Section 221-01 (Board Review 13).

§ 87(2)(g)

§ 87(2)(b). It is therefore recommended that **Allegation A** be closed as **exonerated**.

Allegation B -Discourtesy: Police Officer Denzil Trim spoke discourteously to § 87(2)(b)

Following the encounter described above, § 87(2)(b) and § 87(2)(b) said that PO Best brought them water, but neither PO Best, PO Trim, nor PO Rivera recalled PO Best doing so. § 87(2)(b) alleged that in response to a male prisoner complaining of being thirsty, PO Trim said, "Oh, this dickhead does not want her water, you can have it," in reference to § 87(2)(b). § 87(2)(b) corroborated the alleged discourteous statement, but not until specifically asked about it at the end of her phone statement. Still, she could not recall the context of the specific profanity or anything else that was said by § 87(2)(b) or any officer during this interaction. In addition, she incorrectly attributed the allegation to a Hispanic male officer instead of a black male officer (see Explanation of Subject Officer Identification section).

PO Trim denied calling § 87(2)(b) a "dickhead," and no officer interviewed acknowledged hearing him or any other officer do so.

§ 87(2)(g)

§ 87(2)(b). Therefore, it is recommended that **Allegation B** be closed as **unsubstantiated**.

Squad: 11

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date